

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #11	CCRB Case #: 201508473	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/03/2015 5:50 PM	Location of Incident: Audubon Avenue and West 177th Street	Precinct: 33	18 Mo. SOL 4/3/2017	EO SOL 4/3/2017	
Date/Time CV Reported Tue, 10/06/2015 2:22 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/06/2015 2:22 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael McDonnell	13619	940446	033 PCT
2. POM Carlos Nieves	18144	947293	033 PCT
3. SGT William Brautigam	688	927959	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael McDonnell	Abuse: PO Michael McDonnell stopped § 87(2)(b)	
B.POM Carlos Nieves	Abuse: PO Carlos Nieves stopped an individual.	
C.SGT William Brautigam	Abuse: Sgt. William Brautigam stopped an individual.	
D.POM Michael McDonnell	Abuse: PO Michael McDonnell frisked § 87(2)(b)	
E.POM Carlos Nieves	Abuse: PO Carlos Nieves frisked an individual.	
F.SGT William Brautigam	Abuse: Sgt. William Brautigam frisked an individual.	
G.POM Carlos Nieves	Abuse: PO Carlos Nieves refused to provide his name to § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On October 3, 2015, Sgt. William Brautigarn, the Field Intelligence Officer of the 33rd Precinct as well as PO Carlos Nieves and PO Michael McDonnell, anti-crime team members from the 33rd Precinct, were informed separately by unknown officers at the station house that a civilian had called the precinct to report that there was a man wearing all red, who was showing his friends a gun in his possession, in the vicinity of West 175th Street and Audubon Avenue. Sgt. Brautigarn, who did not work with PO Nieves and PO McDonnell, went to the scene in the same vehicle with them. When the officers reached the intersection of West 177th Street and Audubon Avenue, they observed a group of men like the one described by the caller. The group split, and the one with the man in red travelled in a different direction. § 87(2)(b) who was in the other group, reported that he was walking alone, and just happened to be walking near a group of four to six men. The officers exited their vehicle. PO McDonnell stopped and frisked § 87(2)(b) (**Allegations A and D**). PO Nieves simultaneously stopped and frisked another individual, who was not identified by the investigation (**Allegations B and E**). Sgt. Brautigarn also allegedly stopped and frisked an additional unidentified individual (**Allegations C and F**). After he was frisked, § 87(2)(b) remained on the scene, and began to record the officers using his cell phone camera. While recording PO Nieves, § 87(2)(b) repeatedly asked him for his name, but PO Nieves did not provide this information (**Allegation G**). PO Nieves told § 87(2)(b) that he was free to leave. The officers entered their vehicle to depart from the scene. § 87(2)(b) then left the scene.

§ 87(2)(b) provided the video footage of this incident that he recorded on his cell phone.



hiraldo cell phone video.mp4

Additional video footage was also obtained from security cameras located at 240 Audubon Avenue, near the intersection where this incident occurred



security camera footage.mp4

(visible in the upper right-hand corner of the screen).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of January 11, 2016, § 87(2)(b) has not filed a notice of claim regarding this incident (Board Review 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b)'s first with the CCRB (Board Review 13).
- PO McDonnell has been a member of the NYPD for ten years and has no substantiated CCRB allegations against him. § 87(2)(b)

- PO Nieves has been a member of the NYPD for seven years, and has no prior substantiated CCRB allegations against him.
- Sgt. Brautigarn has been a member of the NYPD for 14 years, and has no prior substantiated CCRB allegations against him.

Potential Issues

- § 87(2)(b) was stopped along with an undetermined number of other men, whom he did not know personally. The officers involved neither prepared any UF250 report in regards to this incident nor noted the name or pedigree of any male stopped in their memo books. § 87(2)(g)
- Sgt. Brautigarn and PO Nieves testified that unknown officers at the 33rd Precinct station house came outside and told them a civilian had called the 33rd Precinct to report that there was a man wearing all red and a red hat showing his friends a gun near West 175th Street and Audubon Avenue. PO McDonnell believed that Sgt. Brautigarn had informed him of the call. Following a review of the 33rd Precinct Event summary from the approximate time period of this incident, three potentially related events were requested from DAO (Board Review 20). None of these events was related to the call described by Sgt. Brautigarn. § 87(2)(g)

Findings and Recommendations

Allegation A—Abuse of Authority: PO Michael McDonnell stopped § 87(2)(b)

Allegation B—Abuse of Authority: PO Carlos Nieves stopped an individual.

Allegation D—Abuse of Authority: PO Michael McDonnell frisked § 87(2)(b)

Allegation E—Abuse of Authority: PO Carlos Nieves frisked an individual.

It is undisputed that § 87(2)(b) was stopped and frisked by PO McDonnell and that PO Nieves stopped and frisked another individual.

§ 87(2)(b) stated that he was walking in the vicinity of a group of males he did not know when PO Nieves, PO McDonnell, and Sgt. Brautigarn exited their vehicle (Board Review 24).

The officers all acknowledged that the only details that were provided to them were that a civilian called the station house regarding a man with a gun, dressed in a red hoody (PO Nieves and Sgt. Brautigarn added that the male was wearing a red cap) was showing a gun to a group of males (PO Nieves believed the males were Hispanic) in the vicinity of Audubon Avenue and West 176th Street. None of the officers knew which officer spoke to the civilian and none of them knew any details about the civilian placing the call or any further information that was provided. PO Nieves and Sgt. Brautigarn did not know which officers informed them, and PO McDonnell believed that Sgt. Brautigarn informed him.

They all drove to the location and observed what they perceived as a group of men, which included a man wearing red matching the description of the man in possession of the gun. When the men saw the officers, the group broke up and dispersed, and the group with the

male in red walked in the opposite direction. The officers exited then exited their vehicle, at which point PO McDonnell stopped § 87(2)(b) and PO Nieves stopped another unidentified individual in the group without the man in red. PO Nieves denied that he stopped the man wearing red (Board Review 21, 22, and 23).

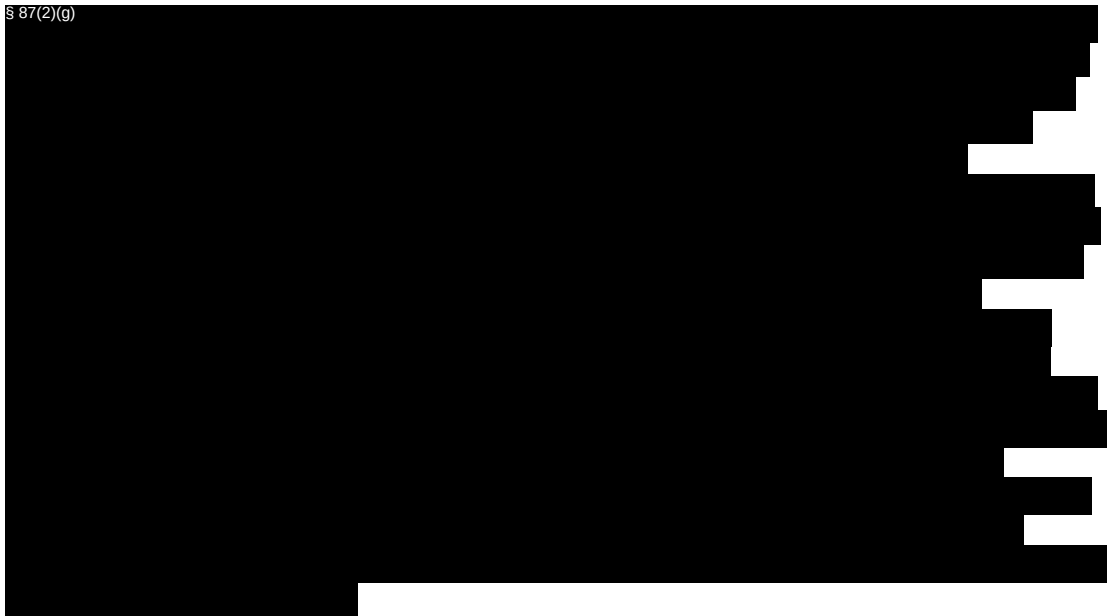
After stopping § 87(2)(b) PO McDonnell frisked his waist, pockets, and down his legs. PO McDonnell testified that he suspected § 87(2)(b) could possibly have a weapon due to the way the group of men had dispersed upon seeing the officers. PO McDonnell denied that there was any particular reason he suspected § 87(2)(b) of being in possession of a weapon besides for his perception that § 87(2)(b) was accompanying the man dressed in red. PO McDonnell did not observe any bulges on § 87(2)(b)'s person. PO McDonnell specified that he suspected § 87(2)(b) of being in possession of a gun due to the nature of the call that was received at the precinct (Board Review 23).

PO Nieves also frisked the man whom he stopped, on the outer layers of his clothing, so if he was wearing a jacket, that would have been frisked, and then his pants and waistband, including the front and back of his body and legs. PO Nieves said that he suspected this man of having a weapon because the man who had the gun could have passed it to another member of the group, and the way in which the group dispersed upon the officers' arrival. When PO Nieves was asked whether he observed any bulges on the man's person, he said that he saw "stuff" in the man's pockets, and said that the man had a cell phone in his pocket.

When an officer has reasonable suspicion that an individual has committed, is committing, or is about to commit a crime, the officer may stop that individual. An officer is authorized to frisk an individual only if he suspects that the individual threatens physical injury to him by virtue of being armed. *People v. DeBour*, 40 N.Y.2d 210 (1976). An anonymous tip that an individual is carrying a gun is not by itself—without any further indicia of reliability—adequate justification for a police officer to stop and frisk that individual. *Florida v. J.L.*, 529 U.S. 266 (2000). Police officers have been legally found to have reasonable suspicion to stop and frisk an individual thought to be carrying a gun based upon information from a partially identified informant, who had provided additional information about how the information was obtained. *People v. Dixon*, 289 A.D.2d 937 (4th Dept. 2001). Police officers are not permitted to stop an individual on the sole basis that they observe this individual in the presence of another individual whom they have probable cause to arrest. Police officers must have independent basis to reasonably suspect each individual stopped of being in some stage of commission of a crime. An individual's proximity or brief interaction with another individual whom police officers have probable cause to arrest does not support an inference that the two individuals are confederates in criminality or even know each other. *People v. McLoyd*, 35 Misc. 3d 822 (Sup. Ct., New York Co. 2012). When observing behavior that lends itself to innocent interpretation, officers should exercise constructive restraint that precludes them from probing for weapons without describable conduct or the demonstrable presence of a describable object. *People v. Cornelius*, 113 A.D.2d 666 (1986) (Board Review 18).

§ 87(2)(g)

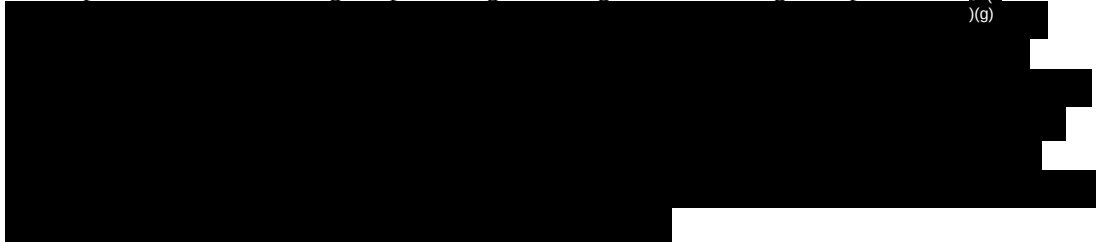
§ 87(2)(g)



Allegation C—Abuse of Authority: Sgt. William Brautigarn stopped an individual.

Allegation F—Abuse of Authority: Sgt. William Brautigarn frisked an individual.

§ 87(2)(b) alleged that while he was stopped and frisked by PO McDonnell, Sgt. Brautigarn stopped and frisked another individual, whom § 87(2)(b) could not identify or describe. Sgt. Brautigarn denied that he stopped or frisked any particular individual, stating that he acted as “an extra body” to ensure the other officers’ safety while they conducted their investigation. PO Nieves believed that Sgt. Brautigarn stopped a man, and PO McDonnell thought that Sgt. Brautigarn might have stopped someone, but was not sure. Neither PO Nieves nor PO McDonnell knew whether Sgt. Brautigarn frisked anyone. None of the pertinent video footage captures Sgt. Brautigarn conducting a stop or frisk. § 87(2)(g)



Allegation G—Abuse of Authority: PO Carlos Nieves refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) testified that at the conclusion of the incident, he repeatedly asked PO Nieves for his name. PO Nieves did not provide the requested information, and only told § 87(2)(b) that he was free to go. § 87(2)(b) provided cell phone video footage of the incident in which the camera is focused on PO Nieves, and § 87(2)(b) is heard asking PO Nieves for his name twice in succession. PO Nieves does not say his name, and only states,



“You’re free to go.” refusal to provide name.mp4 PO Nieves recalled that § 87(2)(b) was recording the incident on his cell phone, and asked for PO Nieves’ shield number, which PO Nieves said he provided verbally. During his CCRB interview, § 87(2)(b)’s cell phone video footage of the incident was played for PO Nieves. PO Nieves denied that he heard § 87(2)(b)’s requests for his name at the time of the incident, and explained that his attention was focused on the individual whom he had stopped at the time.

The video footage demonstrates that § 87(2)(b) requested PO Nieves’ name at an adequate volume while a very short distance away from PO Nieves. PO Nieves is also shown looking directly at the camera, and he is undisputedly speaking to § 87(2)(b) when he tells § 87(2)(b) that he is free to go. § 87(2)(g)

§ 87(2)(b)

Patrol Guide section 203-09 requires that police officers courteously and clearly provide their name and shield information upon any civilian request for such (Board Review 17). § 87(2)(g)

§ 87(2)(b)

§ 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date